

BEFORE THE FEDERAL MARITIME COMMISSION

CHINA UNITED LINES, LTD,

Complainant,

v.

AMAZON.COM SERVICES LLC,

AMAZON LOGISTICS INC.,

and

BEIJING CENTURY JOYO COURIER SERVICE CO.,

LTD.,

Respondents.

DOCKET NO. 25-04

**DECLARATION OF MICHAEL SCANLON IN SUPPORT OF RESPONDENTS’
OPPOSITION TO COMPLAINANT’S MOTION TO PRODUCE DOCUMENTS
IMPROPERLY WITHHELD AS PRIVILEGED**

I, Michael Scanlon, hereby declare as follows:

1. I am a partner at K&L Gates, LLP, counsel for Respondents Amazon.Com Services LLC, Amazon Logistics Inc. and Beijing Century Joyo Courier Service Co., Ltd. (“Amazon”) in the above-captioned matter.

2. I am a member in good standing of the Bars of the District of Columbia and the State of New York, among others.

3. I have personal knowledge of the facts set forth in this Declaration and am fully familiar with the proceedings in this case.

4. I submit this declaration in support of Respondents’ Opposition to Complainant’s Motion to Produce Documents Improperly Withheld as Privileged.

5. On January 20, 2026, Bryce Cullinane, Senior Attorney at Theodora Oringer PC and counsel for China United Lines LTD, took the deposition of David Cardadeiro, the corporate

representative for Amazon. A true and correct copy of the cited portions of this deposition are attached as Exhibit A hereto.

6. On January 29, 2026, Bryce Cullinane took the deposition of Adam Baker. A true and correct copy of the cited portions of this deposition are attached as Exhibit B hereto.

7. On January 8, 2026, I participated in a meet and confer videoconference on privilege issues with Abraham Weill, an associate at K&L Gates LLP, Bryce Cullinane, Senior Attorney at Theodora Oringer PC and counsel for China United Lines LTD, and Nicholas Poynder, a Partner at HFW and China United's counsel in the arbitration matter before the Shanghai International Arbitration Center (SHIAC).

8. At the conclusion of that meeting the parties agreed that counsel for Amazon would send an email regarding the interplay of China United's outstanding discovery demands and the privilege issues discussed. The parties further agreed that counsel for China United would send a detailed, itemized list of specific concerns it had with Amazon's privilege log entries.

9. On January 17, 2026, I was a recipient of an email Abraham Weill sent to Bryce Cullinane that addressed and summarized issues raised during the January 8 meet and confer discussion, among other issues, and renewed Amazon's request that China United identify specific entries in Amazon's privilege log to which it disputed with the understanding that Amazon would review any specific issues. A true and correct copy of Mr. Weill's January 17, 2026 email is attached as Exhibit C hereto.

10. China United did not respond to the January 17, 2026 email or otherwise identify in writing specific entries in Amazon's privilege log that it disputed, as it had promised to do, before filing its Motion.

11. On November 10, 2026, I sent China United a letter providing a detailed response to each of the allegations contained in its October 16, 2025 letter regarding alleged deficiencies in Amazon's document production. A true and accurate copy of this letter is attached as Exhibit D hereto.

I declare under penalty of perjury that the foregoing is true and correct.

DATED: February 23, 2026

/s/ Michael F. Scanlon

Michael Scanlon

CERTIFICATE OF SERVICE

I certify that on this 23rd day of February, 2026, the foregoing document has been filed with the Secretary for the public docket, with a copy to judges@fmc.gov and served on the following counsel of record, as provided by the Initial Order in this proceeding.

/ s / Michael F. Scanlon

Michael F. Scanlon

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